

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #1	CCRB Case #: 201900850	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/24/2019 3:00 PM	Location of Incident: Empire Boulevard and Schenectady Avenue	Precinct: 71	18 Mo. SOL 7/24/2020	EO SOL 3/10/2021	
Date/Time CV Reported Mon, 01/28/2019 5:58 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/28/2019 5:58 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anderson Thimote	16504	957399	071 PCT
2. POM Mario Bueno	11861	960290	071 PCT
3. POM John Mcmanus	15975	949309	071 PCT
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Mario Bueno	Abuse of Authority: At Empire Boulevard an Schenectady Avenue, Police Officer Mario Bueno stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Anderson Thimote	Abuse of Authority: At Empire Boulevard an Schenectady Avenue, Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM John Mcmanus	Abuse of Authority: At Empire Boulevard an Schenectady Avenue, Police Officer John Mcmanus stopped the vehicle in which § 87(2)(b) was an occupant.	
D.POM Mario Bueno	Abuse of Authority: At Empire Boulevard an Schenectady Avenue, Police Officer Mario Bueno searched the vehicle in which § 87(2)(b) was an occupant.	
E.POM Anderson Thimote	Abuse of Authority: At Empire Boulevard an Schenectady Avenue, Police Officer Anderson Thimote searched the vehicle in which § 87(2)(b) was an occupant.	
F. An officer	Abuse: At the 71st Precinct stationhouse, an officer searched the vehicle in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On January 28, 2019, § 87(2)(b) filed this complaint with the CCRB online.

On January 24, 2019, at approximately 3:00 p.m., § 87(2)(b) was driving his car when Police Officers Mario Bueno, Anderson Thimote, and John McManus of the 71st Precinct stopped him at the intersection of Empire Boulevard and Schenectady Avenue in Brooklyn (**Allegations A-C: Abuse of Authority, § 87(2)(g)**). PO Bueno found that § 87(2)(b) license was suspended and placed § 87(2)(b) under arrest. PO Bueno and PO Thimote searched § 87(2)(b) car (**Allegation D-E: Abuse of Authority, § 87(2)(g)**). PO McManus drove the car back to the stationhouse. § 87(2)(b) alleged that his car was searched again at the stationhouse (**Allegation F: Abuse of Authority, § 87(2)(g)**). § 87(2)(g), § 87(4-b)

The investigation obtained two body-worn camera videos related to this incident (Board Review 01, Board Review 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: At Empire Boulevard and Schenectady Avenue, Police Officer Mario Bueno stopped the vehicle in which § 87(2)(b) was an occupant.
Allegation (B) Abuse of Authority: At Empire Boulevard and Schenectady Avenue, Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.
Allegation (C) Abuse of Authority: At Empire Boulevard and Schenectady Avenue, Police Officer John McManus stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) provided a phone statement and an in-person, verified statement to the CCRB, § 87(2)(g) (Board Review 03, Board Review 04).

§ 87(2)(b) testified that he was alone, driving his vehicle near the intersection of Empire Boulevard and Schenectady Avenue when PO Bueno, PO Thimote, and PO McManus stopped him (Board Review 04). § 87(2)(b) vehicle is a red, Hyundai Genesis that is registered in California. All the windows of his vehicle, except for the front windshield, are tinted at five-percent light transmittance.

PO Bueno testified that he first saw § 87(2)(b) vehicle when § 87(2)(b) drove past him and his partners (Board Review 05). PO Bueno noticed that § 87(2)(b) car had illegally tinted windows. PO Bueno knew the windows were illegally tinted because he was unable to see through them. PO Bueno, PO Thimote, and PO McManus acknowledged seeing § 87(2)(b) tinted windows and collectively agreed to pull him over. PO Bueno pulled over § 87(2)(b) and approached the vehicle with the intention of further investigating § 87(2)(b) tinted windows. § 87(2)(b) provided his driver's license which was then checked for warrants. The results showed that § 87(2)(b) license was suspended. § 87(2)(b) was placed under arrest § 87(2)(b)

NY Vehicle & Traffic Law § 375(12-a)(b) states that no person shall operate any motor vehicle upon any public highway, road or street if the front windshield or side windows are treated with any material which has a light transmittance of less than seventy-percent (Board Review 06).

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: At Empire Boulevard and Schenectady Avenue, Police Officer Mario Bueno searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (E) Abuse of Authority: At Empire Boulevard and Schenectady Avenue, Police Officer Anderson Thimote searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (F) Abuse of Authority: At the 71st Precinct stationhouse, an officer searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that, when he pulled over, he stopped his vehicle next to a parking sign that stated, “Authorized Vehicles Only” (Board Review 04). PO Bueno asked for § 87(2)(b) license, which he provided. PO Bueno checked § 87(2)(b) license at the police car and then came back. PO Bueno told § 87(2)(b) that his license was suspended and that he was going to search his car. § 87(2)(b) complied and exited the vehicle. § 87(2)(b) stood at the back of the vehicle while PO Bueno and PO Thimote leaned inside § 87(2)(b) car. § 87(2)(b) saw PO Bueno and PO Thimote look in the rear passenger seat and around the front seats. Then PO Bueno handcuffed § 87(2)(b) and put him in the police car. PO McManus got in the driver’s seat of § 87(2)(b) car and drove § 87(2)(b) car to the stationhouse.

§ 87(2)(b) was released from the stationhouse with a desk appearance ticket (DAT). When his car was returned to him, § 87(2)(b) saw that the contents of his trunk were rearranged. § 87(2)(b) believed his vehicle had been searched a second time at the stationhouse.

PO Bueno testified that § 87(2)(b) was considered under arrest when he learned that § 87(2)(b) was driving with a suspended license (Board Review 05). PO Bueno searched the front seats, center console, and back passenger seat. The lid of the center console was open prior to PO Bueno entering the vehicle. PO Bueno did not open any compartments inside the vehicle. PO Bueno searched the vehicle because it was being taken into police custody, as it could not be left where it was parked. PO Bueno testified that it is procedure for officers to search the vehicle in order to discover anything that could harm the officers. PO Bueno did not recall if either PO Thimote or PO McManus also searched the car. PO Bueno did not recover any contraband from the vehicle.

PO Bueno denied searching § 87(2)(b) vehicle at the stationhouse. PO Bueno testified that he left the stationhouse and went back to his post after housing § 87(2)(b) in the cells. PO Bueno did not know who, if anyone, searched § 87(2)(b) car at the stationhouse.

§ 87(2)(b)

NYPD Patrol Guide Procedure 208-03 requires that officers safeguard an arrestee's vehicle, if appropriate (Board Review 09).

People v. Francis, 12 Misc. 3d 781 (2006) found that a lawful arrest of the driver does not in itself justify impoundment of the vehicle. Impounding a vehicle violates the Fourth Amendment unless it furthers police caretaking functions such as safeguarding the streets from congestion, parking violations, or road hazards. In People v. Francis, the People failed to establish a valid reason for impoundment since the car was not evidence of criminality and the passenger of the vehicle, who held a valid driver's license, could have removed the car from the street. If there had been no one who was legally able to drive the car, impoundment would have been justified (Board Review 10).

People v. Johnson, 1 N.Y.3d 252 (2003) held that a car that is lawfully in police custody is subject to routine inventory search to catalogue its contents (Board Review 11).

NYPD Patrol Guide Procedure 218-13 outlines that, when conducting an inventory search, an officer should thoroughly search the vehicle's interior including, but not limited to, glove compartments, consoles, and trunks (Board Review 12).

§ 87(2)(b), § 87(2)(g)

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§ 87(2)(g), § 87(4-b)

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§ 87(2)(g), § 87(4-b)

§ 87(2)(b), § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).
- PO Bueno has been a member of service for three years and has been a subject in four CCRB complaints and fifteen allegations, of which four were substantiated (Board Review 15):
 - 201805446 involved substantiated allegations of retaliatory arrest against PO Bueno. The Board recommended formalized training and the NYPD has not yet imposed discipline.
 - 201809509 involved substantiated allegations of discourteous actions and words against PO Bueno. The Board recommended formalized training and the NYPD has not yet imposed discipline.
- PO Thimote has been a member of service for four years and has been a subject in five CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g)
- PO McManus has been a member of service for nine years and has been a subject in five CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of August 5, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 16).

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date